

22STCP02799 22STCP02799

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 22STCP02799 Hearing Date: September 15, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 15, 2026

Case Name: Wen v. Cruz, et al.

Case No.: 22STCP02799

Matter: Motions for Reconsideration (3x)

Moving Party: Plaintiff Yu Wen

Responding Party: Defendants Doreen Kalfus, Jocelyn Cruz, and Paramount Pictures

Corporation

Notice: OK

Ruling: The Motions for Reconsideration are denied.

Defendants to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a landlord-tenant and roommate dispute filed by a pro per litigant.

On May 18, 2026, the Court granted the motion to quash service of summons of Defendant Jocelyn Cruz, finding that “sub-service is late given that the mailing occurred on July 25, 2025; sub-service is complete 10 days after the mailing (CCP § 415.20(b)), which here would be August 4, 2025; the three-year deadline to serve defendants was July 27, 2025; and the Court granted a final extension for service until July 30, 2025.”

On June 9, 2026, the Court sustained the demurrer of Defendant Paramount Pictures Corporation (Paramount) to the entirety of the First Amended Complaint (FAC), without leave to amend, stating, “[b]ecause there is no opposition, the FAC is deemed abandoned. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.)”

On June 15, 2026, the Court sustained the demurrer of Defendant Doreen Kalfus to the entirety of the First Amended Complaint, without leave to amend, on the same grounds.

Plaintiff Yu Wen now seeks reconsideration of the above three rulings. Among other reasons, Wen argues that the Court failed to consider her ex parte applications and grant her additional continuances.

Code Civ. Proc. § 1008(a) provides, “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”

As a threshold matter, the Court lacks subject matter jurisdiction to entertain the Motions for Reconsideration as to Defendants Paramount and Cruz. On May 18, 2026, and June 9, 2026, respectively, the Court entered signed Orders of Dismissal as to Cruz and Paramount. A written order of dismissal signed by the Court constitutes an entered judgment under CCP § 581(d). Following entry of dismissal, the trial court loses jurisdiction to consider a motion for reconsideration under CCP § 1008. (*APRI Ins. Co. v. Superior Court* (1999) 76 Cal.App.4th 176, 181-182; *Ramon v. Aerospace Corp.* (1996) 50 Cal.App.4th 1233, 1237-1238; *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 937.)

Even if jurisdiction existed, Plaintiff failed to present new or different facts, circumstances, or law that could not have been presented prior to the rulings with reasonable diligence. Plaintiff was already granted continuances to file oppositions. Plaintiff’s argument regarding ex parte applications fails to establish a statutory basis for reconsideration, and a further continuance would not cure the mandatory statutory deadline for service on Cruz under CCP § 583.210.

In the alternative, even if reconsideration were procedurally proper, the demurrers of Paramount and Kalfus were properly sustained without leave to amend. Aside from Plaintiff’s abandonment of the action by failing to file timely oppositions (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20), the FAC fails on its face to state facts sufficient to constitute a cause of action against either Defendant under CCP § 430.10(e).

Therefore, the Motions for Reconsideration are denied.

Defendants to give notice.